

CHAPTER XX.

Appeals.

It will be remembered, (see *ante*, Chap. 1), that the Act of 12 Victoria, Chap. 63, gives an appeal from the decisions of the Court to the Court of Appeals composed of all the Judges of the three Courts; and from that there is an appeal to the Judicial Committee of the Privy Council in England.

By the above mentioned Act the nine Judges were empowered to make rules regulating the conduct of Appeals, and several rules were passed, laying down the practice in appeals from all the Courts. These were confirmed by 13 and 14 Victoria, Chap. 51, and such of them as relate to appeals from Chancery are subjoined.

XXVIII.
Security for
costs--Affidavit
of justification.

That in Appeals in the Court of Chancery all securities under the fortieth section of the said Act of the Provincial Parliament, passed in the twelfth year of the reign of Her present Majesty, Chapter sixty-three, shall be in the form of a bond which, together with affidavit of Justification, shall be filed with the Registrar of the said Court, and notice thereof served on the respondent, his solicitor or agent, and the same shall stand allowed, unless the respondent shall within fourteen days after service of such notice move the said Court to disallow the same, a special application shall be necessary to stay proceedings under any of the exceptions in the said Section of the said Act.

XXIX.
Petition.
Service of
copy.

That the Petition of Appeal shall be in the form set forth in the Schedule to this Order. The petition of Appeal shall be filed with the Clerk of the Court, and a copy thereof together with a notice of the hearing of the appeal shall be served on the respondent, his solicitor or agent,

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